

108	Davis vs. Career Networks Institute, Inc. 2024-01389974	Motion for Preliminary Approval of Class/PAGA Settlement The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$825,000 class action and PAGA settlement. Upon submission of papers reflecting the revisions identified below, the motion will be granted as follows: \$10,000.00 for plaintiff's enhancement payment (not to exceed); \$275,000.00 for attorneys' fees (not to exceed 1/3 of gross settlement amount); \$30,000.00 for litigation costs (not to exceed); \$7,500.00 for settlement administration costs (not to exceed); and \$80,000.00 total PAGA penalties (\$60,000.00 to LWDA). 1. Were all supplemental papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. 2. The Miller declaration (ROA 82) is unexecuted and thus defective. An executed version must be filed. 3. Plaintiff was ordered to file a redline version of the proposed order but has failed to do so. The final approval hearing is scheduled for October 1, 2026 at 2:00 p.m. in Department CX102. The motion for final approval shall be filed at least 16 court days before the hearing. The court further refers Class Counsel to the "Guidelines for Approval of Class Action Settlements & PAGA Settlements" posted on the Court's website for Department CX102, available at https://voypubapps.occourts.org/complex-civil-calendar. Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
109	Romero vs. BSH Home Appliances Corp 2024-01386303	Motion to Approve PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they fail to adequately address the previously identified issues. Accordingly, Plaintiff Christina Romero's Motion for Approval of PAGA Settlement is CONTINUED to August 6, 2026 at 2:00 p.m. in Department CX102 in order to give Plaintiff's counsel an opportunity to address the issues identified below. This is a PAGA-only action. On 3/18/2024, Plaintiff Christina Romero filed a PAGA complaint against Defendant BSH Home Appliances Corp. (ROA #2.) Defendant answered on 5/15/2024. (ROA #15.) The operative complaint is the first amended complaint, filed on 1/8/2025 pursuant to the parties' stipulation and the court's order granting leave, which alleges a single cause of action for PAGA civil penalties based on various Labor Code wage-and-hour violations. (ROA #44.) On 9/4/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement, and submitted for the Court's review the Joint Stipulation of PAGA Settlement.

The motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of \$360,000.

On 1/29/2026, the Court continued the first hearing on the motion and asked Plaintiff's counsel to address various issues. (ROA #79.)

The Court has identified several issues with the supplemental papers. Accordingly, the following issues must be addressed by Plaintiff's counsel before the motion can be granted:

1. Counsel attests that following the Court's 1/29/2026 minute order, the parties entered into a First Amendment to Joint Stipulation of PAGA Settlement ("First Amendment") and that it is attached to the proposed order concurrently filed with counsel's 5/11/2026 supplemental declaration. (ROA #82, Counsel Supp. Decl., ¶ 7.) However, the concurrently filed proposed order does not include this attachment. (ROA #80.) Counsel must provide the Court with a copy of the First Amendment for review before the motion can be granted.
2. The Court concludes that an attorneys' fee award totaling \$108,000 or 30% of the GSA, constituting a 0.92 multiplier of the lodestar amount, is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved.
3. Counsel's supplemental declaration states that the administrator's "costs to administer this case are \$4,979.00," and counsel inserted this amount in the proposed cover letter to aggrieved employees and in the proposed order as the amount the Court should award for administrator costs. However, the administrator's own declaration attests that its "costs to administer the case are \$4,979. However, Simpluris has offered a courtesy client discount of \$1,000 and has agreed to administer this case for a fee of \$3,979." (ROA #82, Exh. 2 [Admin. Decl.] at ¶ 12 & Exh. C thereto.) Therefore, the Court concludes that the administrator should be awarded \$3,979 from the GSA as the Administration Expenses Payment.
4. The Court further concludes that a Plaintiff Service Payment of \$3,000 is fair, adequate, and reasonable for a settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

Plaintiff's counsel must also provide the Court with a revised Class Notice with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The pages should be numbered.
3. The notice/cover letter should explain how the individual payments were calculated (i.e., not just "on a proportionate basis" but pro rata according to the number of Pay Periods the Aggrieved Employee worked during the PAGA Period).
4. The notice/cover letter should describe the recipient's responsibility for any taxes payable on the amount received.

		Plaintiff’s counsel must also provide a revised Proposed Order with the following corrections and revisions: 1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order. 2. Attorney information must be deleted from the caption page. 3. As noted above, the proposed order filed at ROA #80 is missing all exhibits referenced in ¶ 1. The revised proposed order must attach all exhibits referenced. 4. In ¶ 14, the name of the administrator should be set forth in full—i.e., Simpluris, Inc. 5. In addition to stating the date on which the administrator’s final report shall be filed, counsel should propose a realistic Final Accounting hearing date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing date. Plaintiff’s counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide red-lined versions of all revised papers, as well as an explanation of how the pending issues were resolved, with precise citation to any corrections or revisions. A supplemental declaration or brief that simply asserts the issues have been resolved or does not clearly state a specific concern has been resolved, is insufficient and will result in a continuance. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days.
110	Volrich vs. Affinity Group LLC 2024-01405245	Motion For Approval of PAGA Settlement The Court has reviewed the supplemental materials provided by Plaintiff’s Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Daniel Volrich’s Motion for Approval of PAGA Settlement is GRANTED. This is a PAGA-only action. On 6/10/2024, Plaintiff Daniel Volrich, on behalf of himself and all aggrieved employees pursuant to Labor Code § 2698, <i>et seq.</i>, filed a PAGA representative action complaint against Defendant Affinity Group LLC d/b/a Affinity Recovery. (ROA #2.) The operative complaint is the first amended complaint (FAC), filed on 7/5/2024, which alleges a single cause of action for PAGA penalties for violations of Labor Code sections 201, 202, 226(a), 226.7, 2247.3, 246, 510, 512, 1174, 1174.5, and 1194, as well as 226.3 and 558. (ROA #11.) On 9/16/2025, Plaintiff filed the instant motion for approval of the PAGA settlement, and submitted for the Court’s review the Private Attorney General Act